SERVICE AND HOSTING AGREEMENT

SAMPLE DOCUMENT FOR SOFTWARE TESTING ONLY. All parties and terms are fictional.

This Agreement is made on the Effective Date between Meridian Cloud Services Pvt. Ltd., 14 Example Road, New Delhi (the "Provider") and Lakeside Crafts Co., 7 Sample Lane, Srinagar (the "Customer").

1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement, "Services" means the cloud hosting, backup and technical support services described in Schedule A, and "Fees" means the monthly charges set out in Schedule B.

1.2 Headings are for convenience only and do not affect how this Agreement is interpreted.

2. SERVICES

2.1 The Provider shall supply the Services to the Customer from the Effective Date and shall use reasonable skill and care in doing so.

2.2 The Customer shall purchase a minimum of five hundred (500) hours of support services in every year of this Agreement, whether or not those hours are actually used.

3. FEES AND PAYMENT

3.1 The Customer shall pay each invoice within fifteen (15) days of receipt. Late payments shall carry interest at three percent (3%) per month.

3.2 The Provider may increase the Fees at any time by giving the Customer thirty (30) days written notice.

4. TERM AND RENEWAL

4.1 This Agreement begins on the Effective Date and continues for an initial term of thirty-six (36) months.

4.2 After the initial term, this Agreement shall renew automatically for successive periods of thirty-six (36) months unless the Customer gives written notice of non-renewal at least two hundred and seventy (270) days before the end of the then-current term.

5. TERMINATION

5.1 The Provider may terminate this Agreement at any time and for any reason by giving the Customer ten (10) days written notice.

5.2 The Customer may terminate this Agreement only if the Provider commits a material breach that remains uncured for ninety (90) days after written notice.

5.3 If the Customer terminates this Agreement for any reason before the end of the then-current term, the Customer shall pay all Fees that would have been due for the remainder of that term.

6. LIABILITY AND INDEMNITY

6.1 The Customer shall indemnify and hold harmless the Provider against all losses, damages, claims, costs and expenses of any kind arising out of the Customer's use of the Services, without any limit on the amount of that liability.

6.2 The Provider's total liability to the Customer under this Agreement shall not exceed the Fees paid by the Customer in the one (1) month before the event giving rise to the claim.

7. INTELLECTUAL PROPERTY

7.1 All websites, software, designs, data compilations and other materials created by the Customer using or in connection with the Services shall be the sole and exclusive property of the Provider, and the Customer assigns all rights in them to the Provider.

7.2 The Provider grants the Customer a non-exclusive, non-transferable licence to use the Services during the term of this Agreement.

8. EXCLUSIVITY AND RESTRICTIVE COVENANTS

8.1 During the term of this Agreement and for a period of three (3) years afterwards, the Customer shall obtain all hosting and technical support services exclusively from the Provider.

8.2 During the same period, the Customer shall not operate, or hold an interest in, any business that competes with the Provider anywhere in India.

9. CONFIDENTIALITY

9.1 Each party shall keep confidential all non-public information received from the other party and shall use it only for the purpose of performing this Agreement.

9.2 This obligation does not apply to information that is public through no fault of the receiving party or that the receiving party is required by law to disclose.

10. ASSIGNMENT AND CHANGE OF CONTROL

10.1 Neither party may assign or transfer this Agreement to any third party without the prior written consent of the other party.

10.2 Any merger, sale of shares or change in the ownership of the Customer shall be treated as an assignment requiring the Provider's prior written consent.

11. NOTICES

11.1 All notices under this Agreement must be in writing and sent by registered post or email to the addresses written at the top of this Agreement, and take effect when received.

12. GENERAL

12.1 This Agreement is the entire agreement between the parties and replaces all earlier discussions and understandings about its subject matter.

12.2 This Agreement is governed by the laws of India, and the courts of Delhi shall have exclusive jurisdiction over any dispute arising from it.

Signed for the Provider: _____

Signed for the Customer: _____